

MOTION TO VACATE CONVICTION UNDER W.S. Sec. 6-2-708(C)

IN THE
(the original Wyoming criminal court that entered the conviction)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
MOVANT.

Original criminal case number:

MOTION TO VACATE CONVICTION UNDER W.S. Sec. 6-2-708(c)

A. AUTHORITY AND ROUTE

This Motion is brought under W.S. Sec. 6-2-708(c) in the original criminal court and case and asks the Court to vacate the conviction identified below.

Under W.S. Sec. 6-2-708(c), the court that entered the conviction may vacate it when the person's participation in the offense resulted from being a victim of human trafficking.

This Motion states the conviction and relies on the attached participant declaration for trafficking-victim status, causal connection, and supporting evidence.

B. THE MOVANT

Name: Maria-Alejandra O'Shaughnessy-Whitfield
Date of birth: 1968-12-31

C. THE ORIGINAL CRIMINAL MATTER

Copy each item below from the court record. Do not infer or reconstruct it from memory.

[C1 - exact conviction] Exact conviction?
.....
.....

[C2 - conviction date] Conviction date?
.....

[C3 - other counts] Other counts?
.....
.....

[C4 - requested vacatur effect] Requested vacatur effect?
.....

.....

D. DECLARATION SUPPORT

The attached Participant Declaration in Support of Motion supplies the movant's trafficking-victim status, the causal connection, and the supporting-evidence route without requiring graphic narrative.

E. REQUEST

The movant asks the Court to vacate the conviction identified above under W.S. Sec. 6-2-708(c).

DATE SIGNATURE OF MOVANT

(The movant signs and dates this Motion personally. Nothing on this page is signed or dated for the movant.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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PARTICIPANT DECLARATION IN SUPPORT OF MOTION

IN THE

Original criminal case number:

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield, MOVANT.

PARTICIPANT DECLARATION IN SUPPORT OF MOTION

Complete this declaration from your personal knowledge. State only what is needed to establish status and causal connection. Do not include graphic details.

1. TRAFFICKING-VICTIM STATUS

I state from my personal knowledge that I was a victim of human trafficking. Relevant period:

.....

.....

2. CAUSAL CONNECTION

I state from my personal knowledge that my participation in the offense of conviction resulted from that trafficking victimization. Brief non-graphic facts establishing that causal connection:

.....

.....

.....

3. SUPPORTING EVIDENCE

Identify official victim documentation if available. Official documentation creates a presumption, but its absence does not stop this Motion. If none is available, identify alternative evidence supporting status or causal connection:

.....

.....

PERSONAL-KNOWLEDGE ATTESTATION

I have reviewed this declaration and state that the facts written above are true to the best of my personal knowledge.

DATE SIGNATURE OF DECLARANT

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

FILING INSTRUCTIONS - MOTION TO VACATE CONVICTION UNDER W.S. Sec. 6-2-708(C)

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

FILING INSTRUCTIONS - MOTION TO VACATE CONVICTION UNDER W.S. Sec. 6-2-708(c)

ORIGINAL COURT AND CASE

File this Motion in the original Wyoming criminal court and case. Copy the court name and case number exactly from the participant's court record. These are existing-case facts; do not treat the case number as a blank for a new court assignment and do not infer either value.

DECLARATION AND EVIDENCE

Complete and personally sign and date the Participant Declaration in Support of Motion. It asks for trafficking-victim status and the causal connection from personal knowledge without requiring graphic detail.

Official victim documentation creates a presumption when available, but its absence alone does not stop this route. If official documentation is unavailable, identify alternative evidence in declaration item 3.

SERVICE

Serve the State/prosecutor under W.R.Cr.P. 49. The controlling decision supplies no statewide hearing deadline, service mode, or certificate requirement, so this packet adds none.

SENSITIVE MATERIAL BEFORE FILING

Before filing, review every public copy and redact sensitive material under Wyoming's applicable rules. Where sensitive material must be provided, use the original criminal court's Wyoming restricted-filing procedure where applicable. Ask that original court how to use its restricted-filing procedure before submitting sensitive material. Filing this Motion does not automatically seal the Motion, declaration, or attachments.

FEE

No statewide fee amount or waiver is stated for this Motion. Ask the clerk of the original criminal court about the fee before filing; do not use a fee from a different Wyoming record-clearing procedure.

WHEN TO STOP AND GET HELP

- Stop if the court record does not establish the exact original court, case number, conviction, date, or other counts.
- Do not include graphic detail. State only the facts needed for trafficking-victim status and causal connection.

- Stop if safety, another case or count, immigration consequences, or disputed procedure requires legal help.